CHAPTER 1

CONSTITUTION: WHY AND HOW?

CHAPTER ESSENCE AT A GLANCE:
Analyze the foundational functions of a constitution, the historical genesis and procedural credibility of the Indian Constituent Assembly, and the balanced institutional design preventing monopoly of power.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Foundational Functions of a Constitution:** A constitution provides a basic set of rules that allow for minimal coordination amongst members of a diverse society, specifies who holds decision-making power, limits government authority to prevent tyranny, and enables the government to fulfill social aspirations and establish just conditions.

• **Authority and Legitimacy of the Constituent Assembly:** Formed under the 1946 Cabinet Mission Plan with 299 members post-partition, the Assembly drew authority not from direct adult franchise but from broad inclusive representation, open public deliberations, and consensus-driven debate across diverse communities.

• **Balanced Institutional Design and Horizontal Distribution:** To ensure durability, the Constitution distributes power horizontally across the Legislature, Executive, and Judiciary, complemented by independent statutory bodies such as the Election Commission, preventing any single institution from subverting democracy.

• **Major Institutional Borrowings and Creative Adaptation:** India integrated tested mechanisms from world constitutions: Parliamentary system and Rule of Law from Britain, Fundamental Rights and Judicial Review from the United States, Directive Principles from Ireland, and a Quasi-Federal structure with a strong Union from Canada.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Constitutional Authority} \Leftrightarrow \text{Coordination} + \text{Power Allocation} + \text{State Limits} + \text{Social Aspirations}$$

Four indispensable constitutional functions securing civic order and liberty

$$\text{Institutional Equilibrium} = \text{Horizontal Division}[\text{Legislature} + \text{Executive} + \text{Judiciary}] \times \text{Mutual Oversight}$$

Tripartite institutional checks and balances preventing authoritarian concentration

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** Do not confuse the Cabinet Mission Plan (1946), which framed the composition and election of the Constituent Assembly, with the Government of India Act 1935, from which administrative structures were adapted.

• **Alert:** The Constituent Assembly was elected indirectly by members of the Provincial Legislative Assemblies established under the Government of India Act 1935, not through direct universal adult suffrage.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. State any two essential functions that a constitution performs for a society. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **First Function:** It provides a set of basic rules that allow for minimal coordination and mutual assurance amongst members of a diverse society. **[1 Mark]**

• **Second Function:** It specifies who has the power to make decisions in society and decides how the government will be constituted. **[1 Mark]**

2. Explain the significance of the Objective Resolution moved by Jawaharlal Nehru in the Constituent Assembly. [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Introduction:** Moved by Jawaharlal Nehru on 13 December 1946, it defined the underlying principles, aspirations, and values guiding the Constitution makers. **[1 Mark]**

• **Core Commitments:** It declared India an independent sovereign republic, guaranteed justice, equality, and freedom to all citizens, and safeguarded minorities and backward classes. **[1 Mark]**

• **Constitutional Legacy:** It served as the ideological foundation and was later adapted into the Preamble of the Indian Constitution. **[1 Mark]**

3. Identify any four major constitutional features borrowed from foreign constitutions and state their country of origin. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. British Constitution:** First Past the Post electoral system, Parliamentary form of government, idea of the Rule of Law, and the institution of the Speaker. **[1 Mark]**

• **2. United States Constitution:** Charter of Fundamental Rights, power of Judicial Review, and independence of the judiciary. **[1 Mark]**

• **3. Irish Constitution:** Directive Principles of State Policy (DPSP) and nomination of members to the Rajya Sabha. **[1 Mark]**

• **4. Canadian Constitution:** A quasi-federal form of government with a strong central government and the vesting of residuary powers in the Union. **[1 Mark]**

4. What is meant by balanced institutional design? How does it protect a constitution from subversion? [Score: 4 Marks]

Answer & Key Valuation Steps:

• **Concept of Balanced Design:** Power is not monopolized by any single institution but distributed horizontally among the Legislature, Executive, and Judiciary, along with independent bodies like the Election Commission. **[1.5 Marks]**

• **Checks and Balances:** Each branch is endowed with constitutional authority to check potential excesses of the other two branches, preventing authoritarian overreach. **[1.5 Marks]**

• **Subversion Prevention:** Even if one branch is captured by factional interests, the remaining independent institutions safeguard democratic norms and individual rights. **[1 Mark]**

5. Why is the Indian Constituent Assembly considered a legitimate and representative body despite not being elected by universal adult franchise? [Score: 5 Marks]

Answer & Key Valuation Steps:

• **Broad Representation:** Members were elected by Provincial Assemblies under proportional representation by single transferable vote, ensuring representation of all major communities. **[1 Mark]**

• **Diverse Social Composition:** It brought together members from various castes, religions, regions, and professional backgrounds, with prominent voices representing Scheduled Castes and women leaders. **[1 Mark]**

• **Deliberative Culture:** Decisions were reached through reasoned debate and consensus rather than raw majoritarian voting, prioritizing national interest over sectional claims. **[1 Mark]**

• **Public Engagement:** The proceedings were public, widely reported in the press, and open to memoranda and suggestions from civil society organizations across the nation. **[1 Mark]**

• **Moral Stature:** The towering moral leadership of leaders like Dr. B.R. Ambedkar, Jawaharlal Nehru, Sardar Patel, and Maulana Azad commanded deep popular legitimacy. **[1 Mark]**

6. Explain how the Indian Constitution balances rigidity and flexibility to function as a living document. [Score: 6 Marks]

Answer & Key Valuation Steps:

• **Meaning of Living Document:** A constitution that retains its core identity while dynamically adapting to evolving social realities and unexpected historical challenges. **[1 Mark]**

• **Flexible Procedures (Simple Majority):** Certain administrative provisions, admission of new states, and creation of legislative councils can be amended by a simple parliamentary majority under ordinary legislative process. **[1.5 Marks]**

• **Rigid Procedures (Special Majority):** Key provisions under Article 368 require a majority of total membership and a two-thirds majority of members present and voting in each House of Parliament. **[1.5 Marks]**

• **Federal Provisions (State Ratification):** Matters impacting federal balance require a special majority of Parliament plus ratification by at least half of the State Legislatures. **[1 Mark]**

• **Basic Structure Safeguard:** The judicial doctrine established in the 1973 Kesavananda Bharati case ensures that essential constitutional foundations cannot be dismantled through amendments. **[1 Mark]**